

Omissions (1)

Topics outline

1. Acts vs omissions
2. Exceptions to the exclusionary rule
3. The general approach for public authorities
4. The development of the modern approach for public authorities
5. Case studies



1. Acts vs Omissions

Acts v omissions

- ❑ “the distinction between acts and omissions is [not] meaningless or illogical. One must have regard to the purpose of the distinction as it is used in the law of negligence, which is to distinguish between regulating the way in which an activity may be conducted and imposing a duty to act upon a person who is not carrying on any relevant activity.” (Lord Hoffmann, p.945)
- ❑ “The distinction between liability for acts and liability for omissions is ... not free from controversy. In some cases the distinction is not clear cut. The categorisation may depend upon how broadly one looks when deciding whether the omission is a 'pure' omission or is part of a larger course of activity set in motion by the defendant.” (Lord Nicholls, p.930)

(*Stovin v Wise* [1996] AC 923)

Example of acts v omissions

Rushbond Plc v JS Design Partnership LLP [2021] EWCA Civ 1889

- ❑ D, an architect, visited C's building and left door unlocked and alarm deactivated
- ❑ Burglar got in and started fire
- ❑ High Court: this was an **omission** case
- ❑ Court of Appeal: this was an **act** case

The exclusionary rule



- “under our law two persons can stand aside and watch a third jump to his death: there is no legal duty to rescue.” (Schiemann LJ, *Vellino v CC of Greater Manchester* [2001] EWCA Civ 1249, [13])
- “The very parable of the good Samaritan...illustrates, in the conduct of the priest and of the Levite who passed by on the other side, an omission which was likely to have, as its reasonable and probable consequence, damage to the health of the victim of the thieves but for which the priest and the Levite would have incurred no civil liability in English law.” (Lord Diplock, *Home Office v Dorset Yacht Co Ltd*, p.1177)

Justification for the exclusionary rule



“One can put the matter in political, moral or economic terms. In **political terms** it is less of an invasion of an individual's freedom for the law to require him to consider the safety of others in his actions than to impose upon him a duty to rescue or protect. A **moral version** of this point may be called the “why pick on me?” argument. A duty to prevent harm to others or to render assistance to a person in danger or distress may apply to a large and indeterminate class of people who happen to be able to do something. Why should one be held liable rather than another? In **economic terms**, the efficient allocation of resources usually requires an activity should bear its own costs. If it benefits from being able to impose some of its costs on other people (what economists call “externalities”,) the market is distorted because the activity appears cheaper than it really is. So liability to pay compensation for loss caused by negligent conduct acts as a deterrent against increasing the cost of the activity to the community and reduces externalities. But there is no similar justification for requiring a person who is not doing anything to spend money on behalf of someone else.”

(Lord Hoffmann, *Stovin v Wise*, p.943-944)

Justification for the exclusionary rule



1. Why pick on me?

- Strong where D is just one of a large class of people who could have helped C, but C chooses to sue D
- Weaker where D is the only person who can help C

2. Freedom/personal autonomy

- Forcing someone to act is much more intrusive than forcing them not to act

3. Legal certainty

- If there were duties to rescue, we would get into very difficult questions about how serious and imminent that danger needs to be for a duty to be imposed
- Current law is relatively simple – no duty for omissions outside special circumstances

Justification for the exclusionary rule



4. Value of altruism

- It is valuable for people to choose whether to help others in need
- If the law forced people to help others, we would lose the value of making the purely moral choice

5. Absence of a right

- Arguably no moral obligation to help others – helping others is ‘supererogatory’ not obligatory
- N.b. this is a broadly ‘Kantian’ position – utilitarians might disagree with this

6. Individual responsibility

- In a case where a TP or C themselves is responsible for the situation, it would erode individual responsibility to make a bystander liable

Omissions: third parties and public bodies

- ❑ Same basic idea as all omissions cases
- ❑ Best treated as applications of the general rule about omissions, rather than as their own special categories
- ❑ No special rules apply to cases involving third parties/public bodies
- ❑ However, in a problem question, it is still best to use the authorities which are most specific to the situation, rather than only using general omissions cases



2. Exceptions to The Exclusionary Rule |

The exceptions



“In the tort of negligence, a person A is not under a duty to take care to prevent harm occurring to person B through a source of danger not created by A unless:

- A. A has assumed a responsibility to protect B from that danger,
- B. A has done something which prevents another from protecting B from that danger,
- C. A has a special level of control over that source of danger, or
- D. A’s status creates an obligation to protect B from that danger.”

(Tofaris and Steel, ‘Negligence Liability for Omissions and the Police’ – affirmed in *Robinson* [34] and *N v Poole* [76])

Other ways of categorising exceptions

- (1) creation of the risk, (2) special relationship, (3) occupier's liability, (4) assumption of responsibility (Lord Scott, *Mitchell v Glasgow County Council* [2009] UKHL 11, [40])
- (1) control, (2) assumption of responsibility, (3) creation (or adoption) of risks (H&R, p.85)
- (1) special relationship between D and C, (2) special relationship between D and TP, (3) creation of source of danger, (4) failure to abate known danger (Lord Goff, *Smith v Littlewoods*)

Creation of risk: treating omissions as acts



- E.g. a driver's failure to break will be treated as an act
- E.g. a motorist who has to leave his vehicle must warn others

“One must have regard to the purpose of the distinction as it is used in the law of negligence, which is to distinguish between

[i] regulating the way in which an activity may be conducted and

[ii] imposing a duty to act upon a person who is not carrying on any relevant activity.”

(Lord Hoffmann, *Stovin v Wise*, p.945)

Creation of risk: treating omissions as acts



Dorset Yacht Co Ltd v Home Office [1970] AC 1004

- ❑ Prison officers brought young offenders to an island and then left them unsupervised.
- ❑ Reasonably foreseeable that they would attempt to escape and cause damage to property.
- ❑ “All members of the House plainly did not regard the [*Dorset Yacht*] case as one in which the alleged breach of duty was merely an omission. ... The negligence was caused by something which [D] did, namely to use their statutory powers of custody to bring the trainees onto the island, where they constituted a foreseeable risk to boat owners, and then take no care to prevent them escaping in the night.” (Lord Hoffmann, *Stovin v Wise*, p.948)

Creation of risk: treating omissions as acts

Haynes v Harwood [1935] 1 KB 146

- ❑ D left horses untethered on a busy street
- ❑ They bolted when kids threw stones at them
- ❑ C was injured
- ❑ Held: D was liable as he had created the risk



Creation of risk: treating omissions as acts



“Dorset Yacht and Haynes v Harwood are examples of cases where [D] acted in such a way as to create a risk of injury to others: in other words, they are not, on analysis, ‘omission’ cases at all, but cases where [D] undertook a positive activity which carried the risk of causing damage to others.”

(Lord Reed, in Mitchell v Glasgow CC [2008] SC 351, [97])

Creation of risk: treating omissions as acts

Topp v London Country Bus [1993] 1 WLR 976

- ❑ D left bus with keys in ignition
- ❑ TP stole bus and killed C
- ❑ Held: D not liable

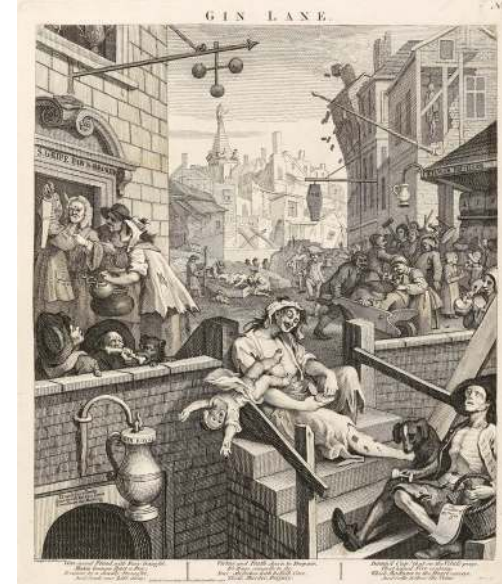


A. Assumption of responsibility to C



“The assumption of responsibility is an undertaking that reasonable care will be taken, either express or more commonly implied, usually from the reasonable foreseeability of reliance on the exercise of such care. Thus ... a hospital undertakes to exercise reasonable care in the medical treatment of its patients. The same is true, *mutatis mutandis*, of an education authority accepting pupils into its schools.”

(Lord Reed, *N v Poole BC*, [80])

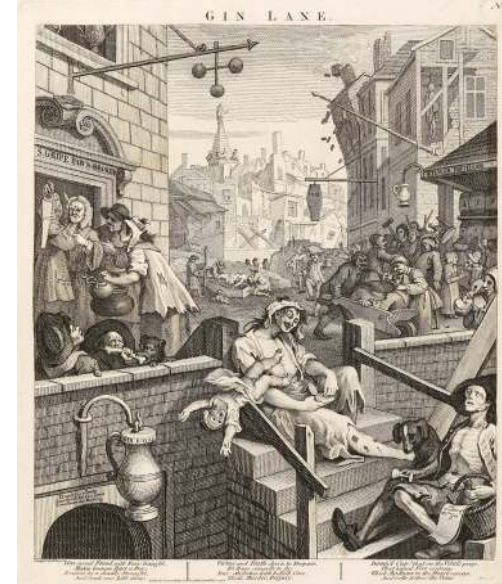


A. Assumption of responsibility to C

Barrett v MOD [1995] 1 WLR 1217

Facts:

- ☐ C was an officer on a naval base
- ☐ He became very drunk, collapsed and was put to bed
- ☐ No one stayed watch over C
- ☐ C choked on his own vomit and died



A. Assumption of responsibility to C

Barrett v MOD [1995] 1 WLR 1217

Held:

- ❑ “I would reverse the judge's finding that the defendant was under a duty to take reasonable care to prevent the deceased from abusing alcohol to the extent he did. Until he collapsed, I would hold that the deceased was in law alone responsible for his condition. Thereafter, when the defendant assumed responsibility for him, it accepts that the measures taken fell short of the standard reasonably to be expected. It did not summon medical assistance and its supervision of him was inadequate.” (Beldam LJ, p.1225)
- ❑ N.b. can also be understood as category B case – by taking him to bed, D cut C off from sources of support which could have ensured he did not die during the night

A. Assumption of responsibility to C



Costello v CC of Northumbria [1999] 1 All ER 550

Facts:

- ❑ C, a police officer attacked in cell. Fellow officers failed to come to her aid.

Held:

- ❑ Police officers assume a responsibility to one another to 'watch each other's back'.
- ❑ N.b. can also be understood as a category D case – because officers owe a duty to one another in virtue of their status

A. Assumption of responsibility to C

Swinney v CC of Northumbria [1997] QB 464

Facts:

- ☐ C was a police informant
- ☐ Documents including C's name were stolen from a police car
- ☐ C was then threatened by the person they had informed on

Held:

- ☐ D had assumed responsibility to ensure C's identity was not revealed unnecessarily



A. Assumption of responsibility to C

Cases where no assumption of responsibility

- ❑ *Stovin v Wise*
- ❑ *Gorringe v Calderdale Metropolitan BC*
- ❑ *Michael v CC of S Wales Police*
- ❑ *N v Poole BC*

(We will look at all of these in the next lecture)

B. Preventing another from protecting C



Kent v Griffiths [2001] QB 36

Facts:

- ☐ C suffered an asthma attack.
- ☐ When C's husband called ambulance, he was told that an ambulance was well on the way and should arrive in seven or eight minutes.
- ☐ It did not arrive for 40 minutes.
- ☐ If C had been told that it would take the ambulance service 40 minutes to come, she would have driven to hospital.

Held:

- ☐ D owed a duty to C, in part because D's act prevented C's husband from driving her to the hospital.

B. Preventing another from protecting C



Tindall v CC of Thames Valley Police [2024] UKSC 33

Facts:

- ☐ T crashed because of some ice on the road, but was fine.
- ☐ T was warning other motorists about the ice, but the police (D) arrived and took T away.
- ☐ Later, C crashed and died because of the ice.

Held:

- ☐ The police did make matters worse.
- ☐ However, no liability because the police did not know that T had been warning other motorists about the ice

C. Control over source of danger



Yetkin v Mahmood [2010] EWCA Civ 776

Facts:

- ❑ D, a highway authority, had planted various shrubs, bushes and plants on central reservation. They failed to keep them trimmed.
- ❑ C stepped out from central reservation without waiting for the lights to change in her favour. Her view of traffic was obscured by overgrown plants. C was hit by a car.

Held:

- ❑ “This highway authority owed a duty to all road users ... to use reasonable care in the manner in which it exercised its powers when it created and maintained the crossing facility.” (Smith LJ, [33])

C. Control over source of danger



Sumner v Colborne [2018] EWCA Civ 1006

Facts:

- ❑ C was a cyclist hit by a car.
- ❑ Visibility at the junction was severely restricted by the presence of vegetation on land next to the highway, for which D, a county council, had responsibility.

Held:

- ❑ “Although work of cutting back the vegetation was included ... in the Council’s maintenance operations, in no sense could the obstruction to visibility at the time of the accident be said to have been the result of a positive act by the Council. The most that could be said against the Council is that it failed to cut back the vegetation so as to prevent it from obstructing visibility at the material time. ... [I]t is clear ... that such a failure does not give rise to a liability in negligence; and that position is not affected by the fact that the Council had carried out work of maintenance on the vegetation in the past” (Richards J, [23])

C. Control over source of danger



Reeves v Commissioner of Police of the Metropolis [2000] 1 AC 360

Facts:

- ❑ C's partner was in police custody.
- ❑ A doctor had found him to be of sound mind, but he committed suicide.

Held:

- ❑ The police have a duty of care to take reasonable steps to assess whether prisoners pose a suicide risk.
- ❑ D was 50% responsible for the suicide.
- ❑ N.b. can also be understood as a case in category B – by taking C into custody, the police cut him off from sources of support which might have helped him overcome suicidal tendencies.

D. D's status creates an obligation to protect C

Gower v LB Bromley [1999] ELR 356

“A headteacher and teachers have a duty to take such care of pupils in their charge as a careful parent would have in like circumstances, including a duty to take positive steps to protect their well-being ... The duty is to exercise the skill and care of a reasonable headteacher and/or teachers, applying the *Bolam* test ...”

(Auld LJ, [359])



D. D's status creates an obligation to protect C

Occupiers' Liability

- ❑ To be covered in the Lent Term
- ❑ Essentially, occupiers owe people on their property a duty of care in respect of omissions



Summary

- ❑ Difficult to establish a DoC for a 'pure' omission
- ❑ Where D creates the dangerous situation, then there is not a 'pure' omission
- ❑ In cases of a 'pure' omission, D will only owe C a DoC if one of the four exceptions mentioned in *N v Poole BC* applies
- ❑ The four exceptions often overlap and are not neatly delineated